

HOUSE BILL 2209

By Powell

AN ACT to amend Tennessee Code Annotated, Title 8;
Title 38 and Title 50, relative to the Federal
Enforcement Accountability and Community
Protection Act.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 38, is amended by adding the following
as a new chapter:

38-15-101.

This chapter is known and may be cited as the "Federal Enforcement
Accountability and Community Protection Act."

38-15-102.

The general assembly finds that:

- (1) This state has an interest in protecting residents, and this interest
extends to maintaining public trust when federal enforcement actions occurring in
this state result in death or serious bodily injury to residents; and
- (2) This state is not required to provide state resources to federal
enforcement operations beyond that required by federal law.

38-15-103.

As used in this chapter:

- (1) "Critical incident" means an enforcement action resulting in death or
serious bodily injury, as defined in § 39-11-106, to an individual regardless of
whether or not the individual was the subject of the enforcement action;
- (2) "Enforcement action" means a federal enforcement operation
involving the potential use of force, and does not include routine administrative

activity, service of process, or execution of judicial warrants that do not involve the use of force;

(3) "Federal enforcement agency" means a federal agency with enforcement authority over federal laws and regulations, and includes, but is not limited to:

- (A) United States immigration and customs enforcement;
- (B) United States customs and border protection;
- (C) The federal bureau of investigation;
- (D) The drug enforcement administration;
- (E) The bureau of alcohol, tobacco, firearms, and explosives;
- (F) United States secret service;
- (G) United States Marshals; and
- (H) United States postal inspection service; and

(4) "State resources" includes state:

- (A) Officials;
- (B) Employees;
- (C) Facilities;
- (D) Equipment;
- (E) Funding;
- (F) Databases;
- (G) Detention and correctional facilities; and
- (H) Logistical support.

38-15-104.

(a) If an employee or official of a state or local law enforcement agency becomes aware of a critical incident within this state involving a federal enforcement agency, then the employee or official shall, within twenty-four (24) hours, notify the following:

(1) The Tennessee bureau of investigation;

(2) The district attorney general for the judicial district; and

(3) The chief law enforcement official where the critical incident took place if the chief law enforcement official is not the person making the notification required by this subsection (a).

(b) The notification must include the time and location of the critical incident, the nature of the action, the type of force used, and whether state or local resources were involved.

39-15-105.

(a) The Tennessee bureau of investigation shall initiate an independent review of all critical incidents involving a federal enforcement agency.

(b) The review must assess foreseeability of the serious bodily injury or death, de-escalation opportunities, and the role of state resources, if any, in the critical incident.

(c) The bureau must publish the review on the bureau's website in a manner accessible to the public within ninety (90) days of opening the independent review. The report must redact any confidential information or information that might compromise an ongoing criminal investigation.

(d) In addition to the independent review required under subsection (a), the bureau shall submit an annual report to the governor and to the speaker of the senate and the speaker of the house of representatives summarizing critical incidents, state resource involvement, and compliance with notification requirements as required by this chapter. The report must include anonymized demographic information when available

and whether the individual harmed was the subject of the enforcement action. A copy of this report must be published on the bureau's website in a manner available to the public.

(e) The bureau shall conduct any reviews and compile the reports required by this section using existing resources within the bureau's budget.

(f) A review conducted pursuant to subsection (a) is for the purpose of transparency, legislative oversight, and public reporting only and is not a criminal investigation of a federal officer.

39-15-106.

State and local officials and agencies shall not provide non-emergency state resources to a federal enforcement agency involved in a critical incident until the independent review required by § 39-15-105 has been completed. This section does not prohibit state and local officials and agencies from providing necessary emergency resources or any cooperation required by federal law or a valid court order before the independent review has been completed.

39-15-107.

(a) A federal enforcement agency is encouraged to take reasonable steps to avoid harm to individuals who are not subject to enforcement by employing de-escalation techniques, including, but not limited to, time and location changes to enforcement actions and delaying enforcement actions when practicable to avoid potential injury to non-target individuals.

(b) A state or local law enforcement agency shall not detain, question, search, or subject an individual to force solely because the individual is:

(1) Present at or near an enforcement action;

(2) Observing, recording, or reporting on the enforcement action from a lawful location;

(3) Traveling to or from work, school, or caregiving responsibilities in the area of an enforcement action; or

(4) Accompanying or assisting a family member, coworker, or neighbor in the area of an enforcement action.

(c) State and local agencies shall not provide personnel, equipment, facilities, or crowd management assistance for the purpose of detaining or dispersing individuals present at or near an enforcement action unless required by federal law or a valid court order.

38-15-108.

A state or local government employee or public official who in good faith reports a violation of this chapter has all protections under §§ 8-50-116 and 50-1-304, and any other applicable protections provided by law.

38-15-109.

(a) This act does not:

(1) Expand federal authority;

(2) Authorize state prosecution of federal officers acting within the scope of federal law;

(3) Limit constitutionally protected rights; or

(4) Impede federal law enforcement actions.

(b) This act does:

(1) Govern the use of state resources; and

(2) Ensure transparency.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.